

Unit 1: Foundations of American Democracy

Key Vocabulary

- Government: the institutions and processes through which public policies are made for society
- Politics: the way groups of people make decisions, share power, and manage resources as a society
- Natural rights: rights given to everyone in a state of nature before governments arise
- Social contract: a form of government where the people consent to being governed by a sovereign
- Republicanism: the power resides in the people, who elect representatives to govern them
- Democratic theory: democracy is a form of government that places ultimate political authority in the hands of people
 - Direct democracy: citizens debate and vote directly on laws
 - Representative democracy: people elect representatives to govern them and to make laws and set policies; essentially an indirect democracy
- Elite theory: a relatively small, cohesive elite class makes all important decisions rather than the will of the people
- Pluralist theory: the argument that representative democracies are based on group interest that protect the individual's interest by representing him/her to the government
- Federalism: a system of government that divides power between a central government and the states
- Judicial review: the power of the judicial branch to examine governmental actions and laws and declare them invalid if they violate a constitutional or legal limit.
- Fiscal federalism: the pattern of spending, taxing, and providing grants in the federal system. There are a few major types of federal aid sent to the states:
 - Block Grants: a fixed sum of money given by the national government to a state or local government for broadly defined purposes
 - Categorical Grants: federal funds given to state and local governments for narrow, specific purposes

- Grants-in-Aid: funds given by the national government to state and local governments to pay for specific public programs or projects
- Federal mandates: rules or orders set by the national government requiring states, local governments, or private groups to take specific actions or follow strict standards
- Revenue sharing: a fiscal arrangement where a higher level of government allocates a portion of its tax revenues to lower-level state or local governments with few restrictions on how the funds are spent

Key Documents

- The Declaration of Independence
 - Paragraph 1 lists reasons that compel them to dissolve the colonists' ties to the British government's rule.
 - Paragraph 2 outlines the colonists' belief of the fundamental purpose of government. They assert that "all men are created equal" and that they are given *inalienable rights*, including "life, liberty, and the pursuit of happiness." The colonists describe a government that operates on a social contract, deriving its power from the *consent of the governed*.
 - Paragraphs 3-29 lists the grievances that the colonists have towards the British government, which was under the rule of King George III. Notable grievances include taxation without consent, the quartering of armed soldiers among them, and cutting off trade with the rest of the world.
 - Paragraphs 30-32 are concluding paragraphs that declare the united colonies as free and absolved from allegiance to the British crown. The signers pledge their lives, fortune, and sacred honor in support of the Declaration.
 - **Analysis**: The Declaration of Independence paid significant homage to ideals common during the Enlightenment era. The concept of life, liberty, and the pursuit of happiness, along with the social contract, was inspired by Locke's *Two Treatises of Government*. Nonetheless, the Declaration of Independence was a crucial founding document that separated the colonies' ties to the British

government and established a new form of republican government rather than one ruled by a monarch.

- The Articles of Confederation

- The Articles of Confederation was the first body of law for the newly formed nation, and served to establish and preserve the independence and sovereignty of the thirteen states. It would later be replaced by the Constitution.
- Article I: Named the country as “The United States of America.”
- Article II: Provides that states retain sovereignty not delegated to the national government.
- Article III: Creates a “league of friendship” for defense and security.
- Article IV: Protects equal treatment and freedom of movement for citizens.
- Article V: Allocates one vote in Congress for each state.
- Article VI: Gives the national government the power to declare war.
- Article VII: Gives states the power to assign military ranks.
- Article VIII: Expenditures by the United States will be paid with funds raised by state legislatures.
- Article IX: Gives Congress the power to declare war and peace, appoint tribunals for crimes on the seas, regulate the post office, appoint a president, and request requisitions from the states. Nine states are required to consent to declare war.
- Article X: Allows a “committee of the states” to exercise the powers of Congress when Congress is not in session.
- Article XI: Provides that Canada may join the Union.
- Article XII: Provides that the Confederation accept the war debt.
- Article XIII: Provides that amendments require approval of all thirteen state legislatures.
- **Analysis**: The Articles of Confederation created a weak central government that was at the mercy of the states to keep it functioning. Because Congress could not collect taxes or force states to pay, it was unable to pay off its debts from the Revolutionary War. The articles also did not provide a federal power to enforce laws passed by Congress, and no federal court system to settle disputes between

states. Changing the Articles of Confederation was practically impossible, requiring the consent of all thirteen state legislatures.

- The Gettysburg Address

- Abraham Lincoln delivered the Gettysburg Address on November 19, 1863 to dedicate a military cemetery for Union soldiers during the Civil War. In the address, Lincoln alludes to the Declaration of Independence's ideals of a nation where all men were "created equal" (born with natural rights such as life, liberty, and pursuit of happiness). He then described the Civil War as test of whether a nation dedicated to these rights could survive, and called for a "new birth of freedom." Lincoln concluded by stating that the "government of the people, by the people, for the people, shall not perish from the earth."
- **Analysis:** The Gettysburg Address demonstrates the foundational ideals in the Declaration of Independence being put to the test. Delivered during the battle between the Union (anti-slavery) and Confederates (pro-slavery), Lincoln reminds the audience of the ideals the nation was founded on, and advocates fighting for them.

- Federalist No. 10, 51, and Brutus No. 1

- Federalist No. 10: James Madison describes the problem of *faction* (an organized political group that opposes the rights of other citizens), and how a faction can overpower weaker ones and become a majority. He provides two methods for removing factions: removing liberty ("the air to the fire"), or making everyone have the same interests, passions, and motives. The two methods, however, are impractical and impossible to do in a nation where everyone is entitled to natural rights. Thus, Madison proposes to set up a large republican government such that there are a variety of factions and interests, which prevents one faction from becoming too powerful.
- Federalist No. 51: James Madison argues for a strong federal government by asserting that human nature is not perfect, and thus requires regulation in order to ensure a functioning nation. However, he acknowledges that the federal government should not be too strong, and proposes the separation of powers and a system of checks and balances. The government's responsibilities are divided into

three branches: legislative (making laws), executive (enforcing laws), and judicial (reviewing and interpreting laws). Each branch has a duty to “check” other branches and potentially limit their power if they are becoming too powerful.

- Brutus No. 1: The author acknowledges the limitations of the Articles of Confederation, but states that the Constitution is not the solution to these limitations. He asserts that the Constitution cannot represent the interests of the people in such a large republic and alludes to Montesquieu’s *Spirit of Laws*. Then, the author argues that the necessary and proper clauses in the Constitution allow the federal government to exercise significant power over states and citizens. The commerce clause is also an issue brought up in Brutus No. 1, as the writers believed that giving the central government the power to regulate trade and commerce would lead to unprecedented central power and destroy state sovereignty.
- The Constitution
 - Article I: Creates a bicameral legislature, establishes requirements for serving in the House of Representatives and Senate, lists expressed powers of Congress, and allows for implied powers.
 - Article II: Creates the presidency, establishes requirements for office, lists expressed powers of the executive.
 - Article III: Creates a Supreme Court and provides that Congress may establish lower federal courts.
 - Article IV: Sets forth the relationships between states.
 - Article V: Establishes the process for amending the Constitution.
 - Article VI: Establishes that the Constitution, federal laws, and treaties are the supreme law of the land.
 - Article VII: Describes how the Constitution will be ratified.
- Federalist No. 39
 - Constitution is a *republic* because the people elect representatives to make and administer laws.

- Government is both *federal* because the ratification of the Constitution is dependent on the states, and *national* because the House of Representatives are elected directly by the people.
- Marbury v. Madison
 - **Facts of the case:** Marbury attempted to sue the Supreme Court into delivering his commission, which Thomas Jefferson instructed his Secretary of State James Madison not to hand it over.
 - **Holding:** The court ruled that although Marbury had a legal right to the commission, the Judiciary Act that Marbury used for the case was unconstitutional because it expanded the court's original jurisdiction beyond what Article III of the Constitution allowed.
 - **Significance:** Because the ruling declared an act of Congress void, it established the principle of judiciary review.
- McCulloch v. Maryland
 - **Facts of the case:** Congress chartered the Second Bank of the United States in 1816. Two years later, the state of Maryland passed legislation to impose taxes on the bank. However, James McCulloch, the cashier of the Baltimore branch of the bank, refused to pay the imposed taxes. Maryland's appeals court asserted that the Second Bank was unconstitutional because the Constitution did not explicitly allow the federal government to charter a bank.
 - **Ruling:** The Supreme Court unanimously ruled that Maryland could not tax the Second Bank of the United States because the Bank was an asset of the national government used to execute constitutional powers. Under the Necessary and Proper Clause in Article I, Section 8 of the Constitution, Congress possessed powers not explicitly outlined in the Constitution. Because the Constitution grants the government pre-existing powers such as imposing and collecting taxes and declaring war, Congress has an implied power to charter a bank. Although states had the power to impose taxes, the Constitution and laws made pursuant to it are supreme and cannot be contradicted by state laws.
 - **Significance:** This case was significant in that it allowed the national government to exercise implied powers that were supreme over state laws.

- United States v. Lopez
 - **Facts of the case:** Alfonzo Lopez, a Texas high school senior, carried a concealed weapon into his high school in San Antonio. Initially, he was charged with firearm possession on school property under Texas law, but the charges were dismissed the next day when federal agents charged Lopez for violating the Gun-Free School Zones Act of 1990, which forbids knowingly possessing firearms in a school zone. Lopez was found guilty and sentenced to six months of imprisonment and two years of supervised release.
 - **Holding:** The Supreme Court ruled in favor of Lopez because in *Jones & Laughlin Steel*, the Court already warned that the Commerce Clause should not be extended to acts that do not directly affect interstate commerce. The majority decision then explained that the Gun Free School Zone Act has no relation to interstate commerce, as it is not part of a larger regulation of economic activity. The majority opinion also asserts that if the Act were to be upheld, then Congress could regulate all activities that might lead to violent crime, regardless of how they are related to interstate commerce, which could lead to a tyrannical government.
 - **Dissenting justices:** The dissenting opinions disagreed with the majority because the presence of guns in schools has been statistically proven to undermine education, as a concerning high number of schoolchildren have been threatened with or experienced violent altercations involving guns. The judges then tied the undermining of education that guns cause to commerce by asserting that global competition has increased the importance of education. They use statistics about worker productivity to attribute the decline in worker productivity to declining education in the United States, which provides justification for using the Commerce Clause for the Gun Free School Zone Act. Finally, the judges utilize a slippery slope argument that families will be less likely to send their children to school in areas of prominent gun violence. Thus, publishers will sell fewer books and companies will sell fewer school supplies.
 - **Significance:** The case *United States v. Lopez* limits congressional power under the Commerce Clause such that the clause cannot be extended to non-economic

and local activities solely due to indirect effects on the national economy. It also reinforced the Tenth Amendment, limiting the power of the federal government under the Constitution.

Practice AP® Exam Questions

1. A member of Congress votes in favor of a bill as a result of receiving many letters of support for the bill from constituents. Which form of democratic representation best describes this voting decision?
(A) Trustee
(B) Delegate
(C) Elite
(D) Pluralist
2. Which of the following is an example of Congress using its implied powers?
(A) Congress changing the tax code so that individuals making more than \$350,000 per year have to pay higher taxes
(B) Congress requesting that the Supreme Court review the constitutionality of a state gun-control law
(C) Congress passing occupational safety regulations for the private sector
(D) Congress ratifying a new trade agreement with Mexico and Canada
3. The case *United States v. Lopez* (1995) struck down the Gun-Free School Zones Act because
(A) it violated Fourth Amendment protections against unwarranted searches
(B) Congress exceeded its authority in the use of the commerce clause
(C) the Second Amendment is a right incorporated to the states
(D) students retain their First Amendment rights while attending public schools
4. Which of the following is an example of checks and balances?
(A) An unpopular Supreme Court ruling can be overturned by a majority vote of both houses in Congress.
(B) A rule issued by a bureaucratic agency may be declared unconstitutional by the Supreme Court.
(C) A filibuster in the Senate can be ended with a cloture motion that has the support of 60 Senators.
(D) A treaty negotiated by the president with a foreign government must be approved by a majority vote in the House.

Questions 5-7 refer to the following passage.

“We hold these truths to be self-evident; that all men and women are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness; that to secure these rights governments are instituted, deriving their just powers from the consent of the governed. Whenever any form of Government becomes destructive of these ends, it is the right of those who suffer from it to refuse allegiance to it, and to insist upon the institution of a new government, ...”

“...Such has been the patient sufferance of the women under this government, and such is now the necessity which constrains them to demand the equal station to which they are entitled. The history of mankind is a history of repeated injuries and usurpations on the part of man toward woman, having in direct object the establishment of an absolute tyranny over her. To prove this, let facts be submitted to a candid world.

He has never permitted her to exercise her inalienable right to the elective franchise.
He has compelled her to submit to laws, in the formation of which she had no voice.
He has withheld from her rights which are given to the most ignorant and degraded men - both natives and foreigners.
Having deprived her of this first right of a citizen, the elective franchise, thereby leaving her without representation in the halls of legislation, he has oppressed her on all sides.
He has made her, if married, in the eye of the law, civilly dead.
He has taken from her all right in property, even to the wages she earns.”

Elizabeth Cady Stanton, Seneca Falls Convention, 1848

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| 5. Which of the following captures a portion of the author’s argument? | 6. The language in the first paragraph of the selection most closely parallels that of which of the following documents? |
| (A) Women elected officials have not done enough to pass laws without promoting women’s rights. | (A) The Preamble to the United States Constitution |
| (B) Men and women are legally equal, but women are superior to men. | (B) The Declaration of Independence |
| (C) The government has made women subservient by denying them the right to vote. | (C) <i>The Federalist</i> 10 |
| (D) Women have faced too much suffrage due to the actions of the government. | (D) <i>Brutus</i> 1 |

7. Which of the following amendments to the United States Constitution addresses the grievance that a woman is not permitted “to exercise her inalienable right to the elective vote”?
- (A) Fourteenth Amendment
 (B) Fifteenth Amendment
 (C) Seventeenth Amendment
 (D) Nineteenth Amendment
8. Which of the following is a correct comparison between the United States Constitution and the Articles of Confederation?

	<u>United States Constitution</u>	<u>Articles of Confederation</u>
(A)	Favored stronger national government	Favored a federal system
(B)	Granted Congress the power to levy taxes	Granted states alone the power to levy taxes
(C)	Required approval by three-fourths of Congress for a constitutional amendment	Required unanimity of Congress to amend
(D)	Granted congress the power to declare war	Granted Congress the power to regulate trade

SCOTUS FRQ

This question requires you to compare a Supreme Court case you studied in class with one you have not studied in class. A summary of the Supreme Court case you did not study in class is presented and provides all of the information you need to know about this case to answer the prompts.

Wickard v. Filburn (1942)

The Agricultural Adjustment Act of 1938 was a law passed by Congress during the Great Depression. The purpose of the federal law was to regulate the production of wheat to stabilize the economy and the nation’s food supply. The law limited the amount of wheat that farmers could grow on their farms. Roscoe Filburn, a farmer in Ohio, grew more wheat than the amount allowed under the Agricultural Adjustment Act. When Filburn was penalized under the law, he sued.

Filburn argued that the excess wheat grown on his farm was for personal use and therefore did not fall under the wheat limit established by the law. Filburn also argued that the law was

unconstitutional because Congress did not have the authority to regulate how much wheat a farmer could grow for personal consumption or use.

A unanimous Supreme Court held that the power of Congress granted by Article I of the Constitution includes the authority to regulate activities in a single state when they have even an indirect effect on the economy of other states. That meant that the Agricultural Adjustment Act applied to Filburn's wheat sold at market and his wheat grown for personal use.

Respond to parts A, B, and C.

A. Identify the constitutional clause that is common to both *United States v. Lopez* (1995) and *Wickard v. Filburn* (1942).

B. Explain how the facts in *United States v. Lopez* and *Wickard v. Filburn* led to different holdings.

C. Explain how the holding in *Wickard v. Filburn* reflects the concept of federalism.